

26IWUD01223 26IWUD01223

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-31

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Tentative:

The demurrer is overruled and the motion to strike is denied. The Defendant argues the Plaintiff lacks legal capacity to sue because it is not the owner of the property. That argument cannot be resolved via this demurrer and motion to strike, as it relies upon facts beyond the face of the complaint of which the court cannot take judicial notice. (See County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.)

The Defendant also argues the complaint fails to allege facts sufficient to state a cause of action for unlawful detainer and is ambiguous and uncertain, but the Defendant fails to explain the bases for his arguments. The complaint states a cause of action for unlawful detainer based upon nonpayment of rent, as the three-day notice to pay or quit appears on its face to comply with Code of Civil Procedure § 1161(2) and Plaintiff alleges service of the notice in conformity with Code of Civil Procedure § 1162.

The Defendant is ordered to file an answer within five days' notice of this ruling.